

CCL Questions

1. Logos and Nomos

Logos means "word" or "discourse," and nomos refers to "law." The two are deeply connected: laws are made of words, and language follows rules that are themselves a kind of law. In any legal context, especially trials, the central role of language becomes clear. For justice to occur, there must be a dialogic space where people listen to one another—where speaking and hearing alternate respectfully. AI technologies, particularly in legal settings like the Estonian "robo-judge," challenge this paradigm. While algorithms can collect data, they cannot *listen* in a truly human sense. A human judge, unlike a machine, shares the same existential condition as those they judge. They know what it means to suffer, to have a life trajectory, to bear the moral weight of a decision. A machine, by contrast, operates through technical processes without this ethical dimension. Law becomes pure technique when detached from the human word.

2. Legality and Justice

Legality concerns the formal validity of a law—whether it follows the correct procedures. Justice, however, refers to the ethical aspirations behind law: equality, fairness, and the right to be heard. The Nazi regime's legal system was perfectly legal, yet deeply unjust. This shows that legality can exist without justice. In contemporary society, justice should imply openness, participation, and non-discrimination. The risk with modern technological systems is that they uphold legality while hollowing out the spirit of justice.

3. Dialogue and Monologue

Dialogue is an exchange where both parties engage reciprocally, learning and shaping meaning together. It reflects a fundamental legal principle: the hearing of both sides. A monologue, on the other hand, is one-directional and lacks mutual recognition. In legal and philosophical terms, dialogue creates the conditions for justice and understanding, whereas monologue imposes a single truth or authority, silencing the other. Law as dialogue builds shared meaning; law as monologue enforces conformity.

4. Power and Democracy

In democratic societies, power ideally comes from collective agreement—what the Greeks called *demos-kratos*, the power of the people. But new technologies shift this dynamic. Power becomes internalized, embedded in habits and invisible routines. Instead of coercion by force (e.g., the king's sword), we are persuaded and conditioned to act in certain ways. This makes power harder to resist because we no longer perceive it as external. It's embedded in platforms, interfaces, and everyday practices.

5. Artificial and Human Intelligence

Human intelligence is shaped by existential purpose. We act not only to achieve measurable outcomes, but sometimes to sacrifice, to resist, to create meaning—even irrationally. Artificial intelligence lacks this capacity; it cannot desire, suffer, or aim beyond programmed goals. This makes human intelligence unique: it is projective, value-driven, and capable of acting against biological or utilitarian interest. We are not simply living beings, but *existents*—oriented toward meaning.

6. Interpretation and Objectivity

All knowledge is mediated by language, and thus by interpretation. There is no absolute, neutral access to truth. Every fact is already "dressed" in a form of language, ideology, or perspective. Objectivity, in this view, is a myth. Law is interpretative by nature: different perspectives on the same event can all be valid in their own terms. Truth is relational and situated—not singular or fixed.

7. Human Rights and Rule of Law

Technological platforms increasingly threaten human rights, especially for vulnerable populations—children, the disabled, the poor. These groups are often exploited in opaque systems that lack accountability. Moreover, even those with relative power are complicit in their own exploitation: we become both masters and slaves in digital systems, subject to surveillance and self-commodification. The legal framework meant to protect rights is often bypassed or reshaped by corporate and algorithmic power.

8. Nullus Homo (No One Is Alone)

Human beings are relational creatures: we come into ourselves only through interaction with others. No one becomes a full human being in isolation. Language, thought, and identity all arise from dialogue and care. This foundational interdependence is essential for ethical and legal life. Without recognition and reciprocity, human development is stunted. Law presupposes this relational basis.

9. Thirdness of Law and Machine Impartiality

A human judge is meant to be a "third" party—neutral and not emotionally invested in either litigant. But since they are human, complete impartiality is never fully achievable. Still, judges strive toward it through ethical effort. Machines, by contrast, are "impartial" by default—but their disinterest is of a different kind. They lack emotional capacity not by virtue of ethical discipline, but because they are non-human. This kind of neutrality risks detachment from the human condition and from the moral weight of legal judgment.

10. Neutrality of the Tool

Technological tools are never truly neutral. They are designed with particular purposes, shaped by funding, development contexts, and intended use. For instance, dating apps structure human relationships in specific ways, encouraging a consumerist mindset (present, choose, use, discard). The tool doesn't simply serve; it transforms the user. Our ways of relating begin to mirror the structure of the tool. As we use the instrument, the instrument shapes us in return.

11. Demo-cracy vs Dromo-cracy

"Demo" means people, "dromo" means speed. Dromocracy refers to a political logic driven by speed and efficiency, often at the cost of reflection and quality. The legal system, under pressure from technological acceleration, risks prioritizing fast output over careful deliberation. Algorithms can aid in comparison and categorization, but they cannot reflect, interpret, or weigh moral consequences. Justice requires slowness—time to think, to empathize, to evaluate.

12. Gratuity and Utility

Gratuity means without cost, but not without value. In capitalist systems, free labor (as in internships or online content) is often devalued, even as it generates profit. The more something is offered for free, paradoxically, the less it is remunerated. True gratuity should not be confused with economic worthlessness. Tools, especially digital ones, are not neutral—they are invested with purposes, designed to extract value even from seemingly "free" use.

13. Connection and Communication

Connection in digital terms often reduces geographical distance but lacks real proximity. To truly communicate is to be *present* with the other, not merely to observe them from afar. Social media creates an illusion of presence, of community, but what we experience is often just a mass of disconnected individuals. Without contact, there is no genuine encounter—only quantitative interaction.

14. Market and Law

The market should be regulated by law, but increasingly, the opposite happens: economic interests shape legal frameworks. In a capitalist context, responsibility becomes obscured. On digital platforms, responsibility is diffused across developers, designers, users, and corporations. Actions are disconnected from actors. Unlike nature or animals, humans are responsible because they choose. But when our choices are shaped invisibly by systems, that responsibility becomes hard to trace.

15. Freedom

Freedom is the precondition of responsibility. If we were not free, there would be no justice system—only behaviorism. Freedom allows us to shape our intentions and make choices. However, the digital environment often frames our choices within pre-defined options, limiting the full expression of will and intention. On social platforms, for instance, we adapt our language to fit algorithmic and community standards, diluting our freedom of expression.

16. Dataism and Civilisation of Data

We are entering a "civilization of data," where every aspect of life—including legal proceedings—is being translated into digital code. Dataism, like the earlier Dadaism, responds to a world overtaken by rationality, standardization, and mechanical logic. The legal system, once a space of existential negotiation, is increasingly shaped by algorithms and quantification. This threatens to flatten our individuality into datasets.

17. Power of Algorithms vs Power of Law

Algorithms impose a kind of pre-structured logic: decisions are made based on pre-set rules. Legal power, by contrast, must remain open to context, humanity, and interpretation. Algorithms risk turning justice into mere administration, stripping it of ethical substance. The legal process should remain a site of human negotiation, not just procedural output.

18. Human Time and Technological Time

Technology restructures time. Court dates, processes, and decisions are increasingly dictated by technological systems, not human rhythms. Legal time used to include delay, reflection, and dialogical space. Now it risks being streamlined into machine-tempo. Efficiency replaces deliberation. But human justice requires time—not only to assess facts, but to weigh values and listen.

19. Intention and Will

Intention and will are core expressions of human subjectivity. In algorithmic systems, they are constrained by the structures in which they operate. We can express ourselves freely in conversation, but when posting online, we must adhere to platform norms, limiting the range of our will. Thus, expression is no longer spontaneous but mediated by the "frames" of technological environments.

20. Robo-Judge

The figure of the "robo-judge" epitomizes the risk of replacing juridical judgment with automated decision-making. While such systems can process enormous data sets and recognize patterns, they lack the ability to comprehend a person's existential context. Justice is not simply about applying rules, but about *understanding* the singularity of each case. Robots may ensure procedural legality, but not human justice.

21. To Comprehend vs To Know

To *know* is to acquire factual, often quantitative, information. To *comprehend* means to share in the condition of the other—to grasp their situation from within. Machines may "know" more than any human, but they cannot comprehend, because they do not share our mortality, vulnerability, or emotional depth. Comprehension is essential for justice. Without it, legal processes risk becoming inhuman and irrelevant.